Billing Policy

(Last Revised: August 1, 2019)

This Billing Policy outlines the billing methods for PlusThis LLC (hereinafter, "COMPANY"). Please read through the entire Billing Policy. Please note that your purchase or use of COMPANY's Services and/or Products constitutes your acceptance of COMPANY's billing practices (in addition to your acceptance of the End User License Agreement).

This Billing Policy is subject to change in COMPANY's discretion, so COMPANY encourages you to consult the Billing Policy each time you purchase services/products from COMPANY.

See Section 6 if you need instructions on cancelling your account.

1. **GENERAL POLICY.** You acknowledge and accept that continued use or purchase of COMPANY's Software or products constitutes your acceptance of this Billing Policy, which contains the following:
    1. You can sign up for a free 30 day trial on a new account upon providing a credit card for future payment after the trial ends. (The trial is not available to previous and existing customers). You can cancel any time within the first 30 days (which is generally 720 hours) by following the cancellation process described in **Section 6** and avoid being charged at all.
    2. All accounts (except for the free trials noted above) are set up on a prepaid basis. COMPANY must receive payment before any billable product or service is provided and/or activated. You are required to keep a valid credit/debit card on file to charge for any recurring monthly subscription fees and one-time or multi-pay consulting fees.
    3. COMPANY does not accept any international checks. All international customers must pay by credit/debit card.
    4. Your subscription is NOT based on how much you use (or do not use) the Software, but instead is based on availability of products and services. However, usage above your selected plan thresholds will incur additional fees.
    5. You are responsible for keeping all credit/debit card details and contact information current with COMPANY. You should periodically check your account profile within the Software to ensure that information is up to date.
    6. All of your recurring subscriptions are automatically invoiced and charged to the credit/debit card on file.
    7. Any of your invoice and/or payment receipts are available from COMPANY upon request. You may also access your account billing history within the Software for all receipts.
    8. Auto Upgrade. Auto Upgrade is enabled by default. While Auto Upgrade is enabled, PlusThis will automatically upgrade your account plan to the next highest plan when you exceed your current plan's monthly Tool Run threshold. While Auto Upgrade is disabled, PlusThis will halt processing of Tool Runs when you exceed your current plan's monthly Tool Run threshold.
2. **METHODS OF PAYMENT.** COMPANY will accept any payments via all major debit/card cards. Payment by any other means, such as check or wire transfer, requires COMPANY's explicit written consent, which shall be given in COMPANY's sole discretion.
3. **BILLING CYCLE.**
    1. **Recurring Billing Procedure.** COMPANY will generate an invoice and collect payment on the invoice at the beginning of your respective billing period (the "rebill date"). Your rebill date will be on the same day of the month and same time of day as when you initially purchased your License Grant or any other product from COMPANY, unless a particular month doesn't have that rebill date, in which case your rebill date would be moved to the last day of the respective month. For example, if your rebill date is the 31st, your rebill date would be January 31, February 28, and March 31, April 30, etc. You may cancel your subscription to the License Grant or any other recurring product from COMPANY at any time during the billing period by following the cancellation procedures in **Section 6.** You understand that any and all subscription fees are nonrefundable.
    2. **For Credit/Debit Card Billings:** COMPANY will automatically charge your authorized credit or debit card listed on file on your specific billing cycle date. If your card on file is declined for any reason, COMPANY will attempt to re-run the charge for the card on file up to four (4) more times within the following nine (9) days. If COMPANY has run your card four (4) times with no success, your account will be cancelled.
    3. **Late Fees:** You will be charged a late fee for any accounts that are past due for thirty (30) days or more. COMPANY will attempt to contact you no fewer than three (3) times before assessing a late fee on your account.
    4. **Delinquent Accounts:** COMPANY will submit any account that is sixty (60) days past due to a third-party collection service.
4. **FEES.**
    1. **Late Fees:** COMPANY, in its discretion, may assess a late fee of five percent (5%) for any account that is thirty (30) days past due.
    2. **Chargebacks:** If you initiate a chargeback, COMPANY may, in its discretion, assess a fifty-dollar ($50 USD) processing fee for each individual chargeback.
    3. **Returned Checks:** If your check is returned, COMPANY may, in its discretion, assess a fifty-dollar ($50 USD) processing fee for each returned check.
    4. **Collections Fee:** In the event that COMPANY shall be required to submit your past due account to a third-party collections service, COMPANY will assess a thirty-dollar ($30 USD) processing fee to your existing account balance. This is an additional fee that is independent of any previously assessed fees made on your account.
    5. **Interest:** Any charges to your account that are not paid when due are subject to interest at a rate equal to or lesser of the following:
        - one and one-half percent (1.5%) per month; or
        - the maximum interest rate allowed by applicable law.

5. **BILLING DISPUTES.**
    1. **Grace Period:** You agree to provide COMPANY with a thirty (30) day grace period to attempt settlement of any billing disputes between you and COMPANY before disputing the billing with any third-party credit/debit company or bank. In the event that you deviate from the process and proceed with a chargeback, COMPANY may collect on the rendered services and any fees associated with the dispute, regardless of the outcome of the chargeback. COMPANY will submit any such disputed amounts to a third-party collection service.
    2. **Suspension of Account:** COMPANY may suspend your account upon receipt of any chargebacks until the matter has been resolved to COMPANY's satisfaction.
6. **CANCELLATIONS.**
    1. **How To Cancel Your Account:** You may cancel your account in the following ways:
        - You may cancel your account through the "My Account" section of the Software platform (Found here: https://admin.plusthis.com/); or
        - You may cancel your account by contacting a COMPANY representative via phone at 1 (844) 758-7844

        Any email requests to cancel will not constitute COMPANY's acceptance of cancellation. Once we process your cancellation request, you will be able to access the Software for the remainder of your pre-paid billing cycle, and your access to the Software will then be terminated on the rebill date.

    2. **How Not To Cancel Your Account:** You cannot cancel your account by cancelling your debit/credit card. COMPANY will continue to treat the account as open and the billing cycle will continue, which if not paid, will result in a past due account that may be turned over to a third-party collection service, within COMPANY's discretion.
    3. **Cancellation with Outstanding Invoices:** Your cancellation of your account does not dismiss any of your outstanding invoices. You have a responsibility to settle any outstanding balance at the time of your cancellation. If you should cancel your account with an outstanding balance, your account may be turned over to a third-party collection service, within COMPANY's discretion.
7. **NO REFUND POLICY.**

COMPANY does not provide refunds. There are NO exceptions.